

1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, \$315,000, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs in the amount of \$30,000 and the requested representative payment of \$10,000 for each plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

1. The Court finds that this settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. The motion is **granted**.
2. Counsel is directed to prepare an order reflecting this ruling, attaching a copy of this tentative ruling, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
3. Plaintiffs’ counsel are ordered to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b).
4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney’s fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
5. The Court may issue a release of the remaining 5% fees through an unreported minute order without hearing upon review and approval of the compliance statement.
6. No appearance is required at the hearing on June 24, 2026.
7. The case management conference calendared for July 24, 2026 is **vacated**.

16. 9:00 AM CASE NUMBER: MSC22-00021
CASE NAME: O'CAIN, JR. VS SHIELDS NURSING CENTER, INC.
HEARING ON SUMMARY MOTION FILED BY DEFENDANT WILLIAM SHIELDS
FILED BY: SHIELDS, WILLIAM
TENTATIVE RULING:

The motion for summary judgment or, in the alternative, summary adjudication, filed by defendant, William M. Shields, is **denied**, as discussed below.

I. Background

Plaintiff Otis L. O'Cain, Jr., is a 48-year-old, legally blind man, with a history of multiple medical issues. (Request for Judicial Notice, hereinafter "RJN," Ex. A, Complaint, ¶11.) Plaintiff was admitted to Shields Richmond Nursing Center for skilled rehabilitation services on June 21, 2020, left the facility for the hospital on August 26, 2020, and was re-admitted to the facility, where he remained from September 3rd through September 25, 2020. (*Id.* at ¶13.) In January 2022, plaintiff filed this lawsuit against defendants, Shields Nursing Center, Inc. (also "SNC") and William M. Shields, alleging (1) Negligence, (2) Negligence Per Se, (3) Abuse of a Dependent Adult, and (4) Negligent Infliction of Emotional Distress.

In connection with the individual defendant, plaintiff's complaint alleges Shields was the administrator of the Richmond facility during the time plaintiff resided there and oversaw the operations of the facility. (RJN Ex. A, Complaint, ¶8.) Plaintiff alleges Shields knew he was dependent on defendants for supervision, close monitoring, and medical attention. (*Id.* at ¶15.) Despite this knowledge, plaintiff alleges Shields failed to provide the necessary attention and care required, which proximately caused plaintiff's falls, infections, and subsequent amputation of his toes. (*Ibid.*)

Among the allegations of subpar care, plaintiff alleges "Defendants lacked sufficient number of trained staff." He alleges this lack of staff caused his diabetes to worsen and resulted in amputation of his toes because his condition was not properly assessed, monitored, and/or cared for. (RJN Ex. A, Complaint, ¶20; see also ¶¶21-22.)

Defendants initially responded to the complaint by unsuccessfully moving to compel arbitration. Defendants appealed the ruling denying their motion and the case was stayed from approximately April 2022 until July of 2023. Soon after the stay was lifted, defendants filed a demurrer and motion to strike. Parties stipulated to continue the date for hearing on those motions and, before they could be heard, the corporate defendant (Shields Nursing Center, Inc.) declared bankruptcy.

The case was again stayed as to the corporate defendant, but it was permitted to proceed as to the individual defendant, William Shields, who answered the complaint in January of this year (2026). In his answer, Shields generally denied the material allegations of plaintiff and included 43 "affirmative defenses."

Shields now moves for summary judgment, arguing that none of the causes of action can succeed because plaintiff is unable to demonstrate one or more elements of each cause of action. As a fifth issue for summary adjudication, Shields also contends that punitive damages are unwarranted here. In support of the motion, defendant submits a memorandum of points and authorities, a separate statement of undisputed material facts, a request for judicial notice, Shields' own declaration, and a declaration from counsel, attaching excerpts from plaintiff's deposition.

Plaintiff opposes the motion, arguing both that defendant fails to meet his initial burden to show entitlement to judgment as a matter of law, and also that whether defendant exercised sufficient control to cause plaintiff's harm is a triable issue of material fact. In support of the opposition, plaintiff offers a memorandum, a response to Shields' separate statement, plaintiff's own declaration, a declaration from his former partner, Angel Davis, stating she directly communicated her concerns to Shields, and a declaration from counsel, Donavon Sawyer, attaching, *inter alia*, excerpts of defendant's deposition transcript.

On reply, defendant objects to the opposition declarations and provides a reply to plaintiff's response to the separate statement.

II. Evidentiary Matters

In support of his motion, defendant requests judicial notice of the complaint, answer, and other documents filed in this case. The request is **granted**.

While plaintiff asserts various objections in his response to the separate statement, there is no authority providing for "objections" to facts; facts can only be disputed or undisputed. (See Code Civ. Proc, § 437c, subd. (b)(3); Cal. Rules of Court, Rule 3.1350(f)(2); Cal. Rules of Court, rule 3.1354, subd. (b) [requiring objections to be filed separate document subject to certain formatting and procedures].)

With respect to defendant's evidentiary objections to plaintiff's evidence, the Court rules as follows:

Declaration of Angel Davis in Support of Opposition

1. Overruled
2. Overruled
3. Overruled

Declaration of Otis L. O'Cain in Support of Opposition

1. Sustained – legal conclusion / improper lay opinion

Declaration of Donavon Sawyer in Support of Opposition

1. Sustained – lacks foundation
2. Sustained – lacks foundation, hearsay
3. Sustained – lacks foundation, hearsay
4. Sustained – lacks foundation
5. Sustained – lacks foundation
6. Sustained – lacks foundation, hearsay
7. Overruled

III. Standard

To be entitled to judgment as a matter of law, a defendant must show by admissible evidence that the action has no merit. (Code Civ. Proc., § 437c, subd. (a).) A defendant can meet this burden by demonstrating one or more elements cannot be established, or by showing a complete defense. (Code of Civ. Proc., § 437c, subd. (o).) The scope of the moving party's initial burden is "framed by the

pleadings.” (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1102.) Once the moving defendant has met that burden, the burden shifts to the plaintiff to show via specific facts that a triable issue of material fact exists. (Code of Civil Procedure § 437c, subd. (p)(2).) A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c (f)(2).)

IV. Discussion

A. First Cause of Action: Negligence

Negligence requires plaintiff to show a legal duty to use due care, a breach of such legal duty, and that the breach was the proximate or legal cause of the resulting injury. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.)

Shields moves for adjudication of the first cause of action on the basis that there is “no evidence” that Shields “personally participated in, authorized, directed, ratified or took any action with respect to plaintiff’s care that caused or contributed to the alleged injuries.”

“[An] officer or director will not be liable for torts in which he does not personally participate, of which he has no knowledge, or to which he has not consented. . . . While the corporation itself may be liable for such acts, the individual officer or director will be immune *unless* he authorizes, directs, or in some meaningful sense actively participates in the wrongful conduct.” (*Frances T. v. Village Green Owners Assn.* (1986) 42 Cal.3d 490, 503-504, emphasis added.) Unlike the inquiry for “piercing the corporate veil,” the issue is individual participation. (*Ibid.*)

Plaintiff alleges that statutory and regulatory violations relating to defendant’s skilled nursing facility care caused plaintiff harm. (SSUMF, Fact No. 31, and plaintiff’s response.) Shields sets forth multiple ways in which he was not involved in the care of plaintiff. The list is comprehensive, including not serving as administrator of the facility in 2020 (SSUMF, Fact No. 32), not “personally” violating any statute or regulation (SSUMF, Fact No. 36), not providing “direct care” or “hands-on” care to plaintiff (SSUMF, Fact Nos. 34-35, 37, 119), etc. This list, while lengthy, does not preclude making any policy decisions with respect to the company.

On the contrary, as noted *Frances T., supra*, because directors are policy-makers who direct and ultimately control corporate conduct, they individually owe a duty of care, independent of the corporate entity's own duty, to refrain from acting in a manner that creates an unreasonable risk of personal injury to third parties. (*Frances T., supra*, 42 Cal.3d at 504.) This prevents a director from inflicting injuries upon others and then escaping liability behind the shield of his or her representative character, even though the corporation might be insolvent or irresponsible. (*Ibid.*) Director status therefore neither immunizes a person from individual liability nor subjects him or her to vicarious liability. (*Frances T., supra*, 42 Cal.3d at 505.) The cases cited by defendant generally support this neutral standard and focus the inquiry on the participatory role of the individual.

Here, defendant provides plaintiff’s responses to deposition questions wherein plaintiff provides little basis for finding a duty or breach by Shields himself. However, to the extent corporate policy may have been the underlying reason for plaintiff’s claims, the cause of action has not been shown to lack merit.

Shields states he “never authorized, directed, ratified or approved any policy or practice” at the facility “that required or encouraged staff to deny necessary care to residents, including Mr. O’Cain, or to violate applicable laws or regulations concerning staffing, safety, or resident care.” Shields states he relies on others to carry responsibilities related to staffing, safety, and resident care

in their day-to-day work. To the extent the declaration seeks to disclaim any role whatsoever in staffing decisions, that particular statement is not made. To the extent the conclusory statements indicate lack of notice of the particular conduct that harmed plaintiff, the Court is not bound to accept an undisputed declaration by an individual as to his or her state of mind. (Code Civ. Proc., § 437c (e).) Further, “summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.” (Code Civ. Proc., § 437c (c).)

Even if defendant successfully showed entitlement to judgment via his declaration, there are material disputes of fact here. (See, e.g., SSUMF, Fact Nos. 115, 117.)

Shields’ own deposition testimony mentions making “rounds” at the facility, which undermines any contention that he was never involved with the facility directly. The facility was further cited for at least one staffing violation. While plaintiff does not provide any specific date of a citation, Shields himself acknowledged its existence at deposition, yet fails to establish why it is irrelevant, or that Shields was not personally involved in any staffing policies that might underlie plaintiff’s claims (or the regulatory citation). Shields himself states that he is “involved at a high level in ensuring that [SNC] facilities are appropriately resourced and staffed [...]” (Declaration of William M. Shields, Jr. in Support of Motion, hereinafter “Shields Decl.,” ¶11.) This involvement is consistent with Shields’ deposition testimony wherein he unequivocally answered that he was responsible for “making sure that the facility is staffed properly.” (Declaration of Donavon Sawyer in Support of Opposition, Ex. 7 at 24:11-14.) The theory is also embraced by the complaint, which alleges that “each of the Defendants owed a duty to use ordinary care and such other care as is required by law regarding the care, the provision of [...] adequate staff [...]” (RJN Ex. A, Complaint, ¶25.) This is sufficient to overcome summary adjudication with respect to negligence, including both the duty and causation arguments asserted by defendant.

Plaintiff further provides a declaration from Angel Davis who states she contacted Shields directly about the care plaintiff was receiving. (Declaration of Angel Davis in Support of Opposition, ¶13.) This conflicts with statements by Shields that he lacked any “contemporaneous personal knowledge” about plaintiff’s care, and that, to the extent he did investigate one fall, there was “not anything problematic.” (Shields Decl., ¶¶10, 55.) This, in addition to the above staffing question, is also sufficient to raise a disputed issue of fact.

Summary adjudication is denied with respect to the first cause of action for negligence.

B. Second Cause of Action: Negligence Per Se

As the moving papers state, negligence per se does not create an independent cause of action. (Memorandum of Points and Authorities in Support of Motion, 13:2-6.) Accordingly, the discussion above equally applies to this cause of action. Plaintiff alleges inadequate staffing. Defendant admits there was at least one citation issued by the relevant regulatory authority. As a corporate director and officer, it appears at least possible that Mr. Shields bears responsibility for decisions related to adequate staffing. On negligence per se, summary adjudication is denied.

C. Third Cause of Action: Neglect Under Elder Abuse and Dependent Adult Civil Protection Act

In order to obtain the remedies available in Cal. Welf. & Inst. Code § 15657, a plaintiff must demonstrate by clear and convincing evidence that defendant is guilty of something more than negligence; he or she must show reckless, oppressive, fraudulent, or malicious conduct as outlined in

Civil Code section 3294. (*Delaney v. Baker* (1999) 20 Cal. 4th 23, 31.) The latter three categories involve intentional, willful, or conscious wrongdoing of a despicable or injurious nature. (*Ibid.*, citing Cal. Civ. Code §3294(c).) Recklessness refers to a subjective state of culpability greater than simple negligence, which has been described as a deliberate disregard of the high degree of probability that an injury will occur. (*Ibid.*) Recklessness, unlike negligence, involves more than inadvertence, incompetence, unskillfulness, or a failure to take precautions but rather rises to the level of a conscious choice of a course of action with knowledge of the serious danger to others involved in it. (*Id.* at 31-32.)

Defendant's motion quotes subdivision (b) of Civil Code, section 3294, and argues that Shields cannot be held liable for the acts of others. As discussed above, there are possible avenues of liability here that do not include such a vicarious liability finding. One such example is the participation of Shields in any understaffing policies that might have contributed to plaintiff's claims. Because the motion papers leave open disputes of fact related to this possibility, as mentioned above with respect to negligence, summary adjudication is denied.

D. Fourth Cause of Action: Negligent Infliction of Emotional Distress

Similar to the above discussion of negligence per se, there is no independent tort of negligent infliction of emotional distress; rather, the tort is negligence. (*Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 205.) For the reasons discussed above in regard to that cause of action, summary adjudication is denied with respect to Negligent Infliction of Emotional Distress.

E. Punitive Damages

While the Court maintains some degree of skepticism that plaintiff can show entitlement to punitive damages in light of the clear and convincing standard, such damages are warranted where a plaintiff shows liability under the Elder Abuse and Dependent Adult Civil Protection Act. Because the motion is denied with respect to that cause of action, the motion is also denied with respect to punitive damages.

17. 9:00 AM CASE NUMBER: MSC22-00247
CASE NAME: LAS MONTANAS MARKET VS. GUTIERREZ
***HEARING ON MOTION IN RE: ENFORCE SETTLEMENT AGREEMENT**
FILED BY: LAS MONTANAS MARKET, INC
TENTATIVE RULING:

Notice to withdrawal Motion to Enforce Settlement Agreement has been filed on the case. This hearing has been **vacated**. No appearance is required on June 24, 2026.